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TEMPORARY WORK - SEASONAL WORKER VISA



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TEMPORARY WORK - SEASONAL WORKER VISA

The UK Seasonal Worker Visa is for workers who have a job offer in the UK to do seasonal horticulture work or poultry production work with a sponsor who is an approved scheme operator.

A person on the Seasonal Worker horticulture work route can stay in the UK for a maximum period of six months in any 12-month period. A poultry production worker can stay in the UK for a period of time beginning no earlier than 2 October and ending no later than 31 December each year.

The Seasonal Worker visa is not a route to settlement and applicants cannot be joined by dependent partners and children.

Requirements for a UK Seasonal Worker Visa

In order to qualify for a Temporary Work – Seasonal Worker Visa, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You have a valid 'Certificate of Sponsorship' from your employer with information about the role you have been offered (if you are applying for a role in the poultry production sector, you must apply on or before 15 November each year);
- You will be working in an eligible role, which falls within the list of 'horticulture' or 'poultry production';
- You have funds of at least £1,270 held for 28 days or your employer has agreed to cover your costs during your first month in the UK to an amount of at least £1,270;
- You have paid the visa application fee and Immigration Health Charge and provide required biometric information;

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- You do not fall for refusal under the general grounds for refusal.

(<https://www.google.co.uk>

The exact requirements you will need to satisfy will vary depending on your circumstances in the UK. You may want to speak to an immigration lawyer for expert advice.

Before you can apply for a Temporary Work – Seasonal Worker Visa you must have a job offer from a Home Office approved sponsor. As legal representatives we are not able to arrange job offers in the UK or sponsor visa applicants ourselves.

Temporary Work – Seasonal Worker Visa Eligible Roles

In order to qualify for a Temporary Work – Seasonal Worker Visa within the horticulture sector or poultry production sector, your proposed role must be an eligible role.

This means that, in order to meet the requirements for a Seasonal Worker visa on the basis of work within the horticulture sector, the type of produce being farmed must be:

- Protected Vegetables – grown in glasshouse systems; or
- Field Vegetables – grown outdoors, including vegetables, herbs, leafy salads and potatoes; or
- Soft Fruit – grown both outdoors or under cover e.g. in glasshouses or a polytunnel. This includes strawberries, raspberries, blackcurrants, blueberries and all rabies and rubus species; or
- Top Fruit (Orchard Fruit) – trees that bear fruit e.g. apples, plums, cherries, apricots; or
- Vine and Bines – both twining or climbing flexible stems of certain plants, e.g. hops, grapes; or
- Mushrooms – typically covers *Agaricus bisporus* species but can also include more exotic species (typically grown indoors).
- Bulbs and cut flowers (such as daffodils) grown outdoors and indoors; or
- Pot plants, such as seasonal bedding plants like pansies, violas, germaniums and poinsettias;
- Hardy ornamental nursery stock – this includes Christmas trees and covers shrubs, roses, ornamental trees and perennials;
- Tree and forest nurseries.

In order to meet the requirements for a Seasonal Worker visa on the basis of poultry production work, the work must involve undertaking one of the following roles:

- Butcher;
- Bird/game dresser;
- Killer and plucker;
- Plucker;
- Poulterer;
- Poultry processor;

- Poultry sticker;
- Trusser;
- (2) Food operative;
- Poultry catcher/handler;
- Poultry vaccinator;
- Poultry meat packer.

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Certificate of Sponsorship (CoS) Requirement

In order to obtain a Temporary Work – Seasonal Worker Visa you must have a valid Certificate of Sponsorship for the role you are planning to do. This is recorded electronically.

Your Certificate of Sponsorship must have been issued by a sponsor who:

- Is listed as A-rated on the Home Office's register of licensed sponsors; and
- Has an endorsement from the Department for Environment, Food and Rural Affairs in relation to the Seasonal Worker route; and
- Is licensed by the Gangmasters and Labour Abuse Authority.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Seasonal Worker visa application. If the Certificate of Sponsorship confirms that the role is in the poultry production sector, the date of application must be on or before 15 November in each year.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- A start date which is no more than 3 months after the date your Seasonal Worker visa application;
- Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office;
- Confirmation that the position complies with relevant legislation such as the relevant Agricultural Wages Order rate, where this applies, and the Working Time Regulations.

Your Certificate of Sponsorship must confirm either:

- If you are being sponsored in the horticulture sector or as a food operative, poultry catcher/handler, poultry vaccinator or poultry meat packer in the poultry production sector, you will be paid at least £11.44 for each hour worked and receive at least 32 hours pay each week; or
- If you are being sponsored a butcher, bird/game dresser, killer and plucker, plucker, poulterer, poultry processor, poultry sticker or trusser in the poultry production sector, you will be paid at least £15.88 for each hour worked and £38,700 per year.

It is possible for your Sponsor to grant you a multiple entry Certificate of Sponsorship which will allow you to leave and return to the UK. <https://www.google.co.uk>

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The hourly rate only includes guaranteed basic gross pay (before income tax and including employee pension and national insurance contributions), and does not include other pay and benefits. [g=richmond+chambers+in](https://www.google.co.uk)

If the applicant is being sponsored to work more than 48 hours a week, only the salary for the first 48 hours a week will be considered towards the salary threshold of £38,700.

If the applicant is being sponsored to work a pattern where the regular hours are not the same each week, resulting in uneven pay, work in excess of 48 hours in some weeks can be considered towards the salary threshold of £38,700, providing the average over a regular cycle (which can be less than, but not more than, 17 weeks) is not more than 48 hours a week. Any unpaid rest weeks will count towards the average when considering whether the salary thresholds are met.

Temporary Work – Seasonal Worker Visa Financial Requirement

Subject to the exemption below, you will need to have cash funds of at least £1,270 available to show that you can support yourself in the UK.

You will need to have held the money for at least 28 consecutive days ending not more than 31 days before the date of your Temporary Work – Seasonal Worker Visa application.

You will be exempt if your employer can cover your costs during your first month in the UK to an amount of at least £1,270, if necessary. Your sponsor will need to confirm this on your Certificate of Sponsorship.

Temporary Work – Seasonal Worker Visa Application Process

Applications for Temporary Work- Seasonal Worker Visas must be submitted from outside of the UK.

There is no time limit on application for workers in the edible or ornamental horticulture sector.

The earliest you can apply for a Temporary Work – Seasonal Worker Visa is 3 months before the date on which you are due to start work. This can be found on your Certificate of Sponsorship.

If the Certificate of Sponsorship confirms that the role is in the poultry production sector, the date of application must be on or before 15 November in each year.

You should receive a decision on your Temporary Work – Seasonal Worker Visa application within 3 weeks.

Temporary Work – Seasonal Worker Visa Application Fee

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The Home Office application fee for a Temporary Work – Seasonal Worker Visa application is currently £298. (<https://www.google.co.uk>)

Duration of a Temporary Work – Seasonal Worker Visa

If you apply for a Temporary Work – Seasonal Worker Visa to work in the horticulture sector and your application is successful, you will be granted permission to enter and remain in the UK for either the period of the job on your Certificate of Sponsorship plus 14 days before and 14 days after that period maximum period or 6 months in any 12 month period, whichever is shorter.

If you apply for a Temporary Work – Seasonal Worker Visa to work in the poultry production sector and your application is successful, you will be granted permission to enter and remain in the UK for either the period of the job on the Certificate of Sponsorship plus 14 days before and 14 days after that period or the period commencing on 2 October and ending on 31 December in the year on which the application is submitted (inclusive), whichever is shorter.

Conditions of stay as a Temporary Work – Seasonal Worker Visa holder

Whilst in the UK as a Seasonal Worker, you will be permitted to work in the job you have been sponsored for. You will be permitted to study (for some courses you'll need an Academic Technology Approval Scheme certificate).

You will not be allowed to accept a permanent job, work in a second job or work in a job that has not been described in your **Certificate of Sponsorship** (<https://www.coscheck-uk.com/>). You will also not be entitled to public funds.

Switching into the Temporary Work – Seasonal Worker Visa Route

It is not possible to switch into the Temporary Work – Seasonal Worker Visa route or between other Temporary Work routes.

UK Visa Refusals

If your application for a Temporary Work – Seasonal Worker Visa is refused, you may be able to make a fresh application or apply for **Administrative Review** (<https://immigrationbarrister.co.uk/business-immigration/challenging-refusals/work-business-visa-administrative-review/>).

How Our Immigration Barristers Can Help

Our team of business immigration barristers has experience in assisting employers and skilled workers across a variety of industries in companies of all sizes. Our barristers can help you with planning to ensure that you meet your start date and ensure that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to skilled workers as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications to enter the UK under alternative immigration routes



Fresh applications, Administrative Reviews and Judicial Review for Seasonal Worker migrants



WHAT CAN WE HELP YOU WITH?

To discuss your Temporary Work - Seasonal Worker Visa application with one of our immigration barristers, contact our Temporary Work - Seasonal Worker Visa lawyers on 0203 617 9173 or complete our enquiry form below.

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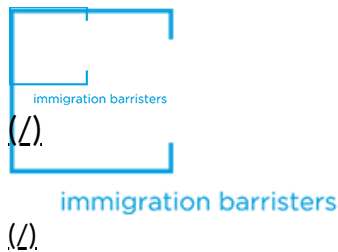


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LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

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